

23BBCV01735 23BBCV01735

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Case Number: 23BBCV01735 Hearing Date: July 10, 2026 Dept: B

Hon.

Victor Avila, Dept B

MOTION

FOR SUMMARY JUDGMENT

Hearing Date: 07/10/2026

CASE

NO./NAME: 23BBCV01735 Sargon Restoration, Inc. et al. v. Morrison

Studios, Ltd. L.P.

Moving Party: Plaintiffs

Sargon Restoration, Inc., Environmental Abatement, Inc., and L.Y.

Environmental, Inc.

Responding Party:

Defendant Morrison Studios, Ltd. L.P.

Notice: Sufficient

Ruling: DENY

NOTICE:

The Court is not requesting oral

argument on this matter. The Court is guided by California Rules of

Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested.

Unless the Court directs argument in the Tentative Ruling, no argument is

requested and any party seeking argument should notify all other parties and

the court by 4:00 p.m. on the court day before the hearing of the party's

intention to appear and argue. The tentative ruling will become the

ruling of the court if no argument is received.

Notice may be given either by email

at or by telephone at (818) 260-8422.

BACKGROUND

This is a breach of contract case. In August of 2022, a tear

gas incident took place at a property located at 5009 Lankershim Boulevard in

North Hollywood California (the Property). On August 15, 2022, Defendant

Morrison Studios Ltd. L.P. (Defendant) executed a written authorization for

emergency cleaning and restoration work at the Property. After receiving

authorization, plaintiffs Sargon Restoration, Inc. (Restoration), Environmental

Abatement, Inc. (Abatement), and L.Y. Environmental, Inc. (LY) (collectively,

Plaintiffs) each performed restoration, abatement, testing, and related

services to remediate the tear-gas contamination.

On July 2, 2024, Plaintiffs filed the First Amended

Complaint (FAC) alleging causes of action for: (1) breach of written contract

(asserted by plaintiff Restoration), (2) breach of oral contract (asserted by

plaintiff Abatement), (3) breach of oral contract (asserted by plaintiff LY),

(4) quantum meruit (asserted by plaintiff Restoration), (5) quantum meruit

(asserted by plaintiff Abatement), (6) quantum meruit (asserted by Plaintiff

LY) against Defendant for failure to make payment for their services.

On April 7, 2026, Plaintiffs filed the instant motion

seeking summary judgment, or in the alternative, summary adjudication on each

cause of action.

On June 22, 2026, Defendant filed an opposition.

As of July 6, 2026, no reply has been filed.

LEGAL

STANDARD

In reviewing a motion for summary

judgment or adjudication, courts must apply a three-step analysis: “(1)

identify the issues framed by the pleadings; (2) determine whether the moving

party has negated the opponent’s claims; and (3) determine whether the

opposition has demonstrated the existence of a triable, material factual

issue.” (Hinesley v. Oakshade Town Center (2005) 135

Cal.App.4th 289, 294.)

“[T]he initial burden is always on

the moving party to make a prima facie showing that there are no triable issues

of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128

Cal.App.4th 1510, 1519.) When a plaintiff seeks summary judgment, the plaintiff

must produce admissible evidence on each element of each cause of action on

which judgment is sought. (Code Civ. Proc., § 437c(p)(1).) The plaintiff is not

required to disprove any affirmative defenses to discharge this burden. (Oldcastle

Precast, Inc. v. Lumbermens Mutual Casualty Co. (2009) 170 Cal.App.4th 554,

564-65.)

If the moving party fails to carry its burden, the

inquiry is over, and the motion must be denied. (See Code Civ. Proc., §

437c, subd. (p)(2); see also Consumer Cause, Inc. v. SmileCare (2001)

91 Cal.App.4th 454, 468.) Even if the moving party does carry its burden, the

non-moving party will still defeat the motion by presenting evidence of a

triable issue of material fact. (Aguilar v. Atlantic Richfield Co. (2001)

25 Cal.4th 826, 849-50.) The supporting evidence can be in the form

of affidavits, declarations, admissions, depositions, answers to

interrogatories, and matters of which judicial notice may be taken.” (Aguilar, supra, 25 Cal.4th at p. 855.)

“Once the [moving party] ... has met

that burden, the burden shifts to the [non-moving party] ... to show that a

trialable issue of one or more material facts exists as to the cause of action or

a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The non-moving

party may not merely rely on allegations or denials of its pleadings to show

that a trialable issue of material fact exists, but instead, “shall set forth the

specific facts showing that a trialable issue of material fact exists as to the

cause of action.” (Ibid.) “If the [non-moving party] cannot do so,

summary judgment should be granted.” (Avivi v. Centro

Medico Urgente Medical Center (2008) 159 Cal.App.4th 463,

467.)

The court

must “liberally construe the evidence in support of the party opposing summary

judgment and resolve all doubts concerning the evidence in favor of that

party,” including “all inferences reasonably drawn therefrom.” (Yanowitz v.

L’Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1037; Aguilar, supra,

25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must

therefore consider what inferences favoring the opposing party a factfinder

could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.) Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

DISCUSSION

Plaintiffs move for summary judgment against Defendant on the complaint. In the alternative, Plaintiffs move for summary adjudication on the first cause of action for breach of written contract; second and third causes of action for breach of oral contract; and

the fourth, fifth, and sixth causes of action for quantum meruit. Specifically, Plaintiffs move for summary adjudication of all causes of action on the following overlapping issue: Defendant has judicially admitted the validity and exact amounts of Plaintiffs' claims in a federal civil action against the City of Los Angeles. (Motion, pp. 2-3.)

Judicial Estoppel

Judicial estoppel prevents a party from asserting a position in a legal proceeding that is contrary to a position previously taken in the same or some earlier proceeding. (Gottlieb v. Kest (2006) 141 Cal.App.4th 110, 130-31.) "In California, courts consider five factors in determining whether to apply judicial estoppel: 'The doctrine [most appropriately] applies when (1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.'" (Id. at p. 131 [quoting Aguilar v. Lerner (2004) 32 Cal.4th 974, 986-87].)

Movant's Burden

Plaintiffs argue that the doctrine

of judicial estoppel prevents Defendant from denying any part of Plaintiffs' claims. (Mot., p. 4.) Plaintiffs argue that at the federal trial in which Defendant sued the City of Los Angeles for damage caused by the government raid and tear gas contamination on the property, Defendant adopted the amounts owed to Plaintiffs as its owed claimed damages incurred from the incident. (Mot., p. 5.) Plaintiffs argue that this shows Defendant took the position that they owe these amounts to Plaintiffs. (Ibid.) Plaintiffs argue Defendant even called Plaintiffs' principal, Yonan Benjamin (Benjamin), as a witness in the case to testify that these outstanding costs were incurred and are still owed. (Ibid.) Thus, Plaintiff argues that Defendant cannot take the position now that they do not owe these amounts to Plaintiffs. (Ibid.)

Here, Plaintiffs have not established judicial estoppel applies. Defendant's federal lawsuit does concern the same incident; however, Defendant does not take a clear position on the dispute with Plaintiffs. In Defendant's federal lawsuit against the City of Los Angeles, Defendant claims approximately \$900,000 in damages to the Property; however, Defendant does not refer to the agreements with each of the Plaintiffs. (Benjamin Decl., Exh. 5, ¶ 9.) In Benjamin's witness testimony, Defendant's counsel acknowledges the instant lawsuit and asks Benjamin to identify the total cost of remediation. (Benjamin Decl., Exh. 6, pp. 16-17.)

However, Defendant's counsel does not take a position on whether Defendant owes these amounts to Plaintiffs. Defendant's counsel only asks if Benjamin expects to be repaid, not by whom. (Benjamin Decl., Exh. 6., p. 37, ¶¶ 20-22.) Benjamin also testifies that Farmers Insurance is the entity that hires him, and impliedly Plaintiffs, to perform these restoration services. (Benjamin Decl., Exh. 6, p. 9, ¶¶ 4-16.) Defendant's counsel does not confirm any privity between Defendant and Plaintiffs or admit that Defendant must repay this debt. Plaintiffs have not established that Defendant took an inconsistent position in the prior proceeding or that the position was successful.

Thus, Plaintiff has not established judicial estoppel, and the burden does not shift to Defendant. However, the Court will review individual causes of action under Plaintiff's motion for summary adjudication.

First Cause of Action for Breach of

Written Contract (Asserted by Plaintiff Restoration)

To state a cause of action for

breach of contract, Plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis

West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Movant's Burden

Restoration alleges breach of

written contract against Defendant. (FAC, ¶¶ 20-25.) Restoration argues that

the authorization establishes a written contract between Defendant and

Restoration. (Mot., p. 5.) Restoration argues that at Defendant's own federal

trial, Defendant confirms that the \$378,950.05 invoice reflects work performed

by Restoration and remains unpaid. (Ibid.)

Here, Plaintiffs have provided the

written authorization executed by Defendant through ServiceMaster requesting

repairs on the Property. (Benjamin Decl., Exh. 1.) Plaintiffs also provide the

alleged invoice for plaintiff Restoration establishing the agreement, work

performed, and costs incurred. (Benjamin Decl., Exh. 2.) The invoices also

reflect the damages allegedly incurred by Restoration in Defendant's failure to

perform. However, the authorization is dated August 2023 even though repairs in

the invoice reflect August 2022. (Benjamin Decl., Exh. 1-2.) Moreover,

Restoration is not listed on this invoice; the only company listed is

ServiceMaster and Plaintiffs have not established a connection between

Restoration and ServiceMaster. Since Restoration alleges breach of written

contract, and has not provided a sufficient written contract, Restoration has

not established the existence of a written contract.

Plaintiff Restoration has not met

their burden. Thus, summary adjudication is denied as to the first cause of action.

Second Cause of Action for Breach of

Written Contract (Asserted by Plaintiff Abatement)

To state a cause of action for

breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC, *supra*, 51 Cal.4th at 821.)

Movant’s Burden

Abatement alleges breach of oral

contract against Defendant in August of 2023. (FAC, ¶¶ 26-31.) Abatement argues that Defendant’s federal trial confirms the agreement reflected by the \$16,000 invoice between Defendant and Abatement. (Mot., p. 5.) Abatement argues that at trial, Defendant confirmed that this invoice remains unpaid. (*Ibid.*)

Abatement does not establish breach

of oral contract against Defendant. Abatement provides an invoice establishing work performed and costs incurred in August of 2022. (Benjamin Decl., Exh. 3.)

The invoices also reflect the damages allegedly incurred by Abatement in

Defendant's failure to perform. However,

Abatement has not provided evidence to establish existence of an oral contract.

Benjamin's witness testimony does not confirm that the parties entered an oral

contract, rather, Benjamin's testimony confirms that Farmers Insurance retains

Plaintiffs to provide restoration services. (Benjamin Decl., Exh. 6, p. 9, ¶¶

4-16.) Thus, Abatement has not established the existence of an oral contract

between the parties and has not established breach of oral contract.

Plaintiff Abatement has not met

their burden. Thus, summary adjudication is denied as to the second cause of

action.

Third Cause of Action for Breach of

Oral Contract (Asserted by Plaintiff LY)

To state a cause of action for

breach of contract, Plaintiff must be able to establish "(1) the existence of

the contract, (2) plaintiff's performance or excuse for nonperformance, (3)

defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis

West Realty, LLC, *supra*, 51 Cal.4th at 821.)

Movant's Burden

LY alleges breach of oral contract

against Defendant reached in August of 2023. (FAC, ¶¶ 32-37.) LY argues that

Defendant's federal trial confirms the additional \$6,375 invoice between

Defendant and LY. (Mot., p. 5.) LY argued that at Defendant's trial, Benjamin

confirmed that this invoice remains unpaid. (Ibid.)

LY does not establish breach of oral

contract against Defendant. LY provides an invoice establishing work performed

and costs incurred in August of 2022. (Benjamin Decl., Exh. 4.) The invoices

also reflect the damages allegedly incurred by LY in Defendant's failure to

perform. However, LY has not provided evidence to establish existence of an

oral contract. As discussed above, Benjamin's testimony confirms that Farmers

Insurance retains Plaintiffs to provide restoration services. (Benjamin Decl.,

Exh. 6, ¶¶ 4-16.) Thus, LY has not established the existence of an oral

contract between the parties and has not established breach of oral contract.

Plaintiff LY has not met their

burden. Thus, summary adjudication is denied as to the third cause of action.

Fourth, Fifth, and Sixth Causes of

Action – Quantum Meruit

“Quantum meruit refers to the

well-established principle that the law implies a promise to pay for

services performed under circumstances disclosing that they were not

gratuitously rendered. To recover in quantum meruit, a party need not prove the

existence of a contract, but it must show the circumstances were such that the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made.” (Chodos v. Borman (2014) 227 Cal.App.4th 76, 96, citations and quotation marks omitted.) “[I]n order to recover under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for such services from the defendant and that the services rendered were intended to and did benefit the defendant.” (Day v. Alta Bates Medical Center (2002) 98 Cal.App.4th 243, 248.)

In the fourth, fifth, and sixth causes of action, Plaintiffs Restoration, Abatement, and LY allege quantum meruit against Defendant based on identical facts. Thus, the Court will address the causes of action together.

Movant's Burden

Plaintiffs argue that Defendant's request for services from each of the Plaintiffs was both express and implied. (Mot., p. 6.) Plaintiffs argue that Defendant's Complaint in the federal lawsuit reveals that Defendant expressly requested Plaintiffs' services and at the very least was aware of the benefit being incurred. (Ibid.)

Moreover, Plaintiffs argue that Defendant was aware and intended to benefit

from Plaintiffs remediating the property. (Ibid.)

Here, Plaintiffs do not establish

quantum meruit. The service request executed by Defendant displays an express

request for restoration services from ServiceMaster. (Benjamin Decl., Exh. 1.)

Moreover, in Defendant's federal lawsuit against the City of Los Angeles and

United States, Defendant alleges that they were "[required] to obtain hazmat

cleaning, environmental cleaning and repairs on the Property caused by the

deployment of the twenty-five rounds of gas cannisters". (Benjamin Decl., Exh.

5, ¶ 9.) However, Plaintiffs do not establish a request between Defendant and

each of the Plaintiffs specifically. No connection is formed between the

purported service request with ServiceMaster and each of the Plaintiffs

invoices. Moreover, Benjamin's witness testimony in Defendant's federal lawsuit

only confirms amounts charged, the line of questioning does not confirm that

Defendant requested services from each of the Plaintiffs. (Benjamin Decl., Exh.

6.) Although Defendant logically intended to benefit from these services

because these repairs would make the Property usable and profitable again,

Plaintiff provides no evidence to establish this element. Thus, Plaintiffs have

not established the elements of quantum meruit.

Plaintiffs have not met their

burden. Thus, summary adjudication is denied as to the fourth, fifth, and sixth

causes of action.

Since Plaintiffs have not

established judicial estoppel applies as to each cause of action, the motion

for summary judgment is DENIED. The motion for summary adjudication is DENIED

as to each cause of action.

CONCLUSION AND ORDER

Plaintiffs' motion for summary judgment and summary

adjudication is DENIED.

Plaintiffs shall provide notice of this order.

Hon. Victor Avila

Judge of the Superior Court